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Date: 3/8/21

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT
for
Landfill Mapping and Surveying Services

THIS AGREEMENT is made and entered into this _____ day of _____, 2021, by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and KLJ Engineering, located at 4585 Coleman Street, Bismark, North Dakota 58503 ("Consultant").

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A and Exhibit B, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed within one year of Notice to Proceed. The City and KLJ Engineering can, with written agreement, extend the contract for an additional two years as outlined in Exhibit A.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of Twenty-Nine Thousand Six Hundred Sixteen Dollars (\$29,616.00) for the first year of the contract as stated in Exhibit B. Each additional year the contract is renewed for, the City agrees to pay Consultant a not to exceed amount of Twenty Thousand Six Hundred Thirty-Eight Dollars (\$20,638.00) as stated in Exhibit B.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.
15. TERM AND TERMINATION
The term of this Agreement shall be for one year after Notice to Proceed is issued to Consultant. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. ENTIRETY OF AGREEMENT

This Agreement consisting of seven (7) pages, Exhibit A consisting of eight (8) pages, and Exhibit B consisting of two (2) pages contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kristina F. Jones, City Clerk

Date: _____

Consultant

By: _____

Print Name: _____

Date: _____



EXHIBIT A

[Scope of Work]

Landfill Mapping & Surveying Services

Abstract

Work to be performed

Matt Theriault

mtheriault@cheyennecity.org

(307) 637-6279

Number of Pages

LANDFILL MAPPING & SURVEYING SERVICES



CITY OF CHEYENNE
WYOMING

ENGINEERING, REIMAGINED

2021

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All described tasks will be completed under the direct supervision of Eric Hearon, a Wyoming licensed Professional Land Surveyor and point of contact for this project. All final products will be reviewed and approved by Eric before being released inclusively to the client.

Task 1 | Map and Grid Generation

KLJ will provide all base map data through a combination of Global Position Systems (GPS) and UAV survey methods. Field work will include locating existing survey control when available, and/or establishing new control of permanent nature as needed and can be preserved. Established control will be used for subsequent surveys, as required by the RFP, to generate required reports and drawings as described in previous stated formats. Field crews will also provide temporary targets incorporated with required grids for aerial map pin control as necessary for each stage to capture required data to map MSW and C&D items. Field crews will also verify permitted boundary as deemed necessary, and boundaries of the MSW and C&D cells. Control for project and flight will be points of the requested grid plans whenever possible. All critical base map points will be field verified, such as flowlines of drainages, culverts, roads, buildings, fencing, wind turbines, and other relevant natural features or improvements within project boundaries. As noted in the RFP, the map generated from this survey will include mapping of the entire 260 acres of the site, and the Phase 1 area will be clearly defined on any grid plans and maps produced.

Task 2 | Air Space Utilization Calculations and Isopach Figures

TASK 2A

SWT will complete the volumetric analysis comparison for airspace (MSW and C&D) and soil usage at the City of Cheyenne Landfill between the proposed 2021 topography information (new base mapping/survey work completed with Task 1 by KLJ) and the second survey of the MSW and C&D areas. This analysis will be completed using Civil 3D AutoCAD software, which develops two digital terrain models and calculates the volume in cubic yards (CY) between the two topographic maps.

Upon completion of this volume calculation, the airspace consumed will be broken out to eliminate volumes associated with excavation and refuse fill due to refuse settlement (areas outside the MSW/C&D fill areas). These waste boundaries will be determined by KLJ under Task 1. The calculated airspace utilization factor (AUF) will not include soil stockpiles or other non-waste stockpiles created within the active landfill footprint between survey dates, SWT/KLJ will provide backup justifying any volumes not included in the AUF, if applicable. For example, justification may include survey of the area prior to stockpiling in order to calculate volume.

With this information and the tonnage information provided by the City, SWT will evaluate the density of the in-place refuse (AUF) for both MSW and C&D. Additionally, when preparing AUF calculations, SWT typically calculates the soil-to-refuse ratio to give the client a good understanding of soil (daily cover) to refuse ratio for their site and how it compares to published industry standards.

Task 2B

A letter report will be prepared, along with back-up calculations and requested drawings/maps, that will be submitted to the City for review. Drawings will include a north arrow, site grid, scale, and title block. Limits and volumes reported on the AUF calculations will be clearly indicated on the applicable support drawing(s). SWT will practice the same methods as described in Task 2A when preparing drawings and other requested items, i.e., calculations/depth comparisons for remaining capacity (new base map versus final top of waste contours). After concurrence from the City, SWT will finalize the report to the City and it will be stamped and signed by a Wyoming registered Professional Engineer.

Project Area



KLJ has reviewed the information in Exhibit A of the RFP, including the operations overview and background of the project, and understand that the landfill is broken into two phases with the focus of the RFP being on Phase 1 for the fill areas that will need to be clearly defined in any maps or grid plans produced.

We are also aware of the survey points that may be available for use in our site work and, if available, will work with the staff to identify the location of them as needed.

We understand that a Wyoming Licensed Land Surveyor is required to oversee the field tasks listed in Section 2 of the RFP and will generate the grid plans, as required, up to three, for the permitted area to be used on-site. In conjunction with this, KLJ understands that up to three site visits may be requested for each year of the contract.

Upon the second mapping survey of the site, SWT will coordinate with KLJ to produce the AUF report and Isopach as requested in task 2 of Section 2 of the RFP, and will submit for City approval prior to finalizing.

ATTACHMENT "B-2"**ACKNOWLEDGMENT OF RECEIPT
OF RFP PACKET, AND ADDENDA**

The undersigned hereby acknowledges receipt of the City of Cheyenne Request for Proposals (RFP) packet for City of Cheyenne Landfill Mapping and Surveying Services, including, Scope of Work, Compensation Schedule, and the following addenda issued during the procurement process.

Addendum #1: Eric L. Hearon dated January 13, 2021

Addendum #2: Eric L. Hearon dated January 20, 2021

Addendum #3: N/A dated N/A

Failure to acknowledge receipt of the proposal packet, sample Agreement, and all addenda may cause the proposal to be considered non-responsive to this solicitation.

Name of Proposer: Eric Hearon, PLS, CFedS

Signature of Proposer: Eric L. Hearon

Date: 2-1-2021

ATTACHMENT "B-3"
USE OF SUB-CONSULTANTS

Sub-consultant Name/City/State	Est. Value of Work	Work Tasks to be Assigned
SWT Engineering LTD	\$6,000 per report	AUF Report and ISOPACH
Total Value of Sub-contracts	up to \$18,000.00	



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EXHIBIT B

[Pricing]

Landfill Mapping & Surveying Services

Abstract

Pricing for year one through three

Matt Theriault

mtheriault@cheyennecity.org

(307) 637-6279

Number of Pages

1

PO Box 20794
Cheyenne, WY 82001
307-638-5551
KLJENG.COM



Price Proposal

REVISED EXHIBIT B COST PROPOSAL

February 3, 2021

TJ Bertalbert
City of Cheyenne - Purchasing
Natural Resources Department
2101 O'Neil Avenue, Room 309
Cheyenne, WY 82001

RE: Request for Proposal (RFP) 1-21 for the City of Cheyenne Landfill Mapping and Surveying Services
Price Proposal

Dear Mr. Bertalbert:

KLJ sincerely appreciates the opportunity to submit the enclosed pricing proposal for mapping and surveying services of the City of Cheyenne Landfill. Professional Land Surveyor Eric Heaton will serve as project manager. He is located in Cheyenne, WY.

KLJ has strategically teamed with SWT Engineering for their vast experience in landfill design and reporting. Please contact Eric at 701-713-0562 (cell), 307-638-2931 (office), or eric.heaton@kljeng.com if you have any questions. Thank you for your consideration of our proposal and we look forward to working with you.

Sincerely,
KLJ

Eric Heaton, PLS, CPEdS
KLJ Project Manager

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Price Proposal

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Explanations for the following service(s) can be found on Exhibit A, Section 2. If a service is not offered, please indicate with a N/A or NO.

First Year of Contract

Task 1 - Map and Grid Generation	Cost
A. Develop new base map	\$8,080.00
B. Phase 1: Three grid plans	\$2,788.00
C. Surveyor Services (per visit X 1)	\$2,300.00 X 1
Total	\$13,168.00
Task 2 - Airspace Utilization Factor Calculations (AUF) and Inseach	Cost
A. Second Survey for AUF for MSW and C&D	\$5,848.00
B. AUF Report including Inseach	\$6,000.00
C. Surveyor Services (per visit X 2)	\$2,300.00 X 2
Total	\$16,448.00

Second and third year if contract renewed for additional two years

Task 1 - Map and Grid Generation	Cost
B. Phase 1: Three grid plans (per year)	\$2,788.00
C. Surveyor Services (per visit X 2)	\$2,300.00 X 2
Total	\$7,388.00
Task 2 - Airspace Utilization Factor Calculations (AUF) and Inseach	Cost
A. Survey for AUF for MSW and C&D (per year)	\$4,950.00
B. AUF Report including Inseach (per year)	\$6,000.00
C. Surveyor Services (per year)	\$2,300.00 X 1
Total	\$13,250.00

All mapping data prepared as a part of this task will be provided to the City in AutoCAD format. Files will be organized and named in an orderly fashion.